

UNITED STATES COURT OF APPEALS FOR THE ELEVENTH CIRCUIT
Appearance of Counsel Form

Attorneys who wish to participate in an appeal must be properly admitted either to the bar of this court or for the particular proceeding pursuant to 11th Cir. R. 46-1, et seq. An attorney not yet properly admitted must file an appropriate application. In addition, all attorneys (except court-appointed counsel) who wish to participate in an appeal must file an appearance form within fourteen (14) days after notice is mailed by the clerk, or upon filing a motion or brief, whichever occurs first. Application forms and appearance forms are available at www.ca11.uscourts.gov.

Please Type or Print

Court of Appeals No. 26-10936

American Securities Association, et al.

vs.

United States Securities and Exchange Commission

The Clerk will enter my appearance for these named parties or amici curiae (you must list all parties or amici; use extra pages if necessary):

New York Stock Exchange LLC, NYSE American LLC, NYSE Arca, Inc., NYSE National, Inc., and NYSE Texas, Inc.

These individuals/entities are:

☐

appellant(s)

☐

petitioner(s)

☒

intervenor(s)

☐

appellee(s)

☐

respondent(s)

☐

amicus curiae

☒

The following related or similar cases are pending in this court:

Citadel Securities LLC v. United States Securities and Exchange Commission, No. 24-12300

☐

Check here if you are lead counsel.

I hereby certify that I am an active member in good standing of the state bar or the bar of the highest court of the state (including the District of Columbia) named below, and that my license to practice law in the named state is not currently lapsed for any reason, including but not limited to retirement, placement in inactive status, failure to pay bar membership fees or failure to complete continuing education requirements. I understand that I am required to notify the Clerk of this court within 14 days of any changes in the status of my state bar memberships. *See* 11th Cir. R. 46-7.

State Bar: New York

State Bar No.: 3050754

Signature: /s/ Ari M. Berman

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